



CHAPTER liii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Brighton East Barnet Valley Keighley Keswick Lichfield and Rotherham. A.D. 1926.
[4th August 1926.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 : 38 & 39 Vict. c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 4) Act 1926. Short title.

A.D. 1926.

S C H E D U L E.

BOROUGH OF BRIGHTON.

*Brighton
Order.*

Provisional Order for amending certain Local Acts.

WHEREAS the Borough of Brighton is an urban sanitary district of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas under the provisions of the Local Acts and Orders specified in Part I. of the Schedule hereto the Corporation as successors to two separate and distinct Water Companies carry on a Water Undertaking within the limits defined in the said Local Acts but different provisions of the said Acts apply to each of the two districts into which the water limits of the Corporation are divided;

And whereas the Parish of Rottingdean within the Rural District of Newhaven is within the water limits of the Corporation but the adjoining Parish of Telscombe in the same district is at present outside the said limits and it is desirable that the Corporation should be enabled to supply water in that parish;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Acts in the manner hereinafter set forth :

Now therefore the Minister in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from the date of the Act of Parliament confirming this Order the Local Acts shall be amended as follows :—

*Interpreta-
tion.*

1. In this Order—

"The Minister" means the Minister of Health :

"The Local Acts" means the Local Acts and the Confirmation Act specified in Part I. of the Schedule hereto :

"The District Council" means the Council of the Rural District of Newhaven :

"Net annual value" means the net annual value of premises as appearing in the Valuation List for the time being in force under the Union Assessment Acts 1862 to 1880 or the Rating and Valuation Act 1925.

*Extension of
water limits
of Corpora-
tion.*

2.—(1) The limits of the water undertaking of the Corporation as defined in Section 4 of the Brighton Corporation Waterworks Act 1872 shall be extended so as to include the Parish of Telscombe in the Rural District of Newhaven.

(2) The Brighton Water (Modification of Charges) Order 1923 shall have no application so far as regards the supply of water by the Corporation within the Parish of Telscombe but subject to the provisions of the next succeeding Article all the provisions of the Local Acts which relate to the Corporation's water undertaking within the water limits prescribed by Section 4 of the Brighton Corporation Waterworks Act 1872 shall apply to the supply of water within the Parish of Telscombe.

A.D. 1926.

—
*Brighton
Order.*

3.—(1) Notwithstanding anything contained in the Local Acts the Corporation may charge for water supplied within the Parish of Telscombe for domestic purposes at a rate not exceeding 2s. in the pound on the net annual value of the premises supplied and for water supplied by meter within the said parish at a rate not exceeding 2s. 6d. per thousand gallons.

Water
charges in
Parish of
Telscombe

(2) If it appears to the Minister upon an application made to him in accordance with the provisions of this Article that the cost and charges of and incidental to the supply of water by the Corporation in the Parish of Telscombe or other circumstances affecting their water undertaking have substantially altered he may if he thinks fit from time to time vary by way either of increase or of decrease the rates for the supply of water hereinbefore authorised.

(3) An application for the purposes of this Article may be made by any one of the following (that is to say) the County Council of East Sussex the Corporation the District Council the Peacehaven Water Company Limited and any owner of land within the Parish of Telscombe and may be made at any time after the expiration of three years from the date of the Act of Parliament confirming this Order and when an Order for variation of charges has been made at any time after the expiration of three years from the date of the Order for the time being in force.

4.—(1) Subject to any agreement between the Corporation and the District Council until the total annual revenue derived by the Corporation in any year ending on the thirty-first day of March from water supplied by them within the Parish of Telscombe amounts to a sum equal to $12\frac{1}{2}$ per cent. of the cost and expenses of and incidental to the provision and laying of the water main referred to in Part II. of the Schedule hereto the District Council shall in each half year ending on the thirty-first day of March and the thirtieth day of September pay to the Corporation a sum equal to the difference between the revenue for each of such half years and one half of such first mentioned sum and any sum so paid by the District Council shall be deemed to be expenses of that Council incurred in the execution of the Public Health Acts.

Guarantee
by District
Council.

(2) In respect of the year ending on the thirty-first day of March one thousand nine hundred and twenty-seven the sum (if any) to be paid to the Corporation by the District Council under

[Ch. liii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1926.

A.D. 1926. sub-division (1) of this Article shall be a sum equal to the difference between (a) the total revenue derived by the Corporation from water supplied as aforesaid during the period from the date of the certificate of completion of the laying of the water main referred to in Part II. of the Schedule hereto to the said thirty-first day of March and (b) the sum which bears to the sum of 12½ per cent. of the costs and expenses aforesaid the same proportion as the said period bears to a year.

—
*Brighton
 Order.*

(3) For the purposes of this Article the cost and expenses above referred to shall be determined by a certificate or certificates to be given by the waterworks engineer of the Corporation.

Short title. 5. This Order may be cited as the Brighton Order 1926.

SCHEDULE.

PART I.

LOCAL ACTS AND ORDERS RELATING TO THE WATERWORKS UNDERTAKING OF THE CORPORATION.

(A)—*Local Acts.*

Session and Chapter.	Short Title.
17 Vict. c. v. - - -	The Brighton Hove and Preston Constant Service Waterworks Act 1854.
20 & 21 Vict. c. xxii. -	The Brighton Hove and Preston Constant Service Waterworks Act 1857.
28 Vict. c. v. - - -	The Brighton Hove and Preston Constant Service Waterworks Amendment Act 1865.
35 & 36 Vict. c. lxxxvi. -	The Brighton Corporation Waterworks Act 1872.
36 & 37 Vict. c. cxxv. -	The Brighton Borough Extension Act 1873.
46 & 47 Vict. c. ciii. -	The Brighton Corporation Waterworks Act 1883.
33 Vict. c. xxii. -	The Shoreham and District Waterworks Act 1870.
59 & 60 Vict. c. cxxxvii. -	The Brighton Corporation Water Act 1896.
63 & 64 Vict. c. xcix. -	The Brighton Corporation Act 1900.
14 & 15 Geo. 5. c. lxiii. -	The Brighton Corporation Water Act 1924.

(B)—*Confirmation Act.*

Session and Chapter.	Short Title.	Provisional Order thereby Confirmed.
42 & 43 Vict. c. clix.	Gas and Water Orders Confirmation Act 1879.	The Shoreham and District Waterworks Order 1879.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. liii.]
Provisional Orders Confirmation (No. 4) Act, 1926.

(C)—*Order of the Minister of Health.*
The Brighton Water (Modification of Charges) Order 1923.

A.D. 1926.

—
*Brighton
Order.*

PART II.

Description of Main to be Laid by the Corporation.

An iron water main of 4 inches internal diameter and about 4,200 yards in length running parallel to the sea coast from a point at or near to the existing meter on the boundary of the Parishes of Rottingdean and Telscombe to a point near to the eastern boundary of the Parish of Telscombe and thence in a northerly direction to a junction with the existing main the property of the District Council.

Given under the Official Seal of the Minister of Health this
Thirtieth day of March One thousand nine hundred
and twenty-six.

(L.S.)

E. TUDOR OWEN
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF EAST BARNET VALLEY.

*Provisional Order to enable the Urban District Council of
East Barnet Valley to put in force the Compulsory
Clauses of the Lands Clauses Acts.* *East Barnet
Valley Order.*

WHEREAS the Urban District Council of East Barnet Valley (hereinafter referred to as "the Council") require to purchase and take the lands described in the Schedule hereto for the purposes of widening opening enlarging or otherwise improving the streets known as Church Hill Road East Barnet Road Lyonsdown Road and Northumberland Road in the said Urban District:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

1. The Council shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them. *Compulsory powers of purchase.*

2. This Order may be cited as the East Barnet Valley Order 1926. *Short title.*

[Ch. liii.]

Ministry of Health [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1926.

A.D. 1926.

East Barnet
Valley Order.

The SCHEDULE above referred to.

Parishes of EAST BARNET and BARNET VALE Urban District of EAST BARNET VALLEY County of HERTFORD.

Parcel Number.	Deposited Plan Sheet Number.	Premises.	Parish.	Owner or Reputed Owner.		Lessee or Reputed Lessee.		Occupier.
				Name.	Address.	Name.	Address.	
1	1	Church Hill Road "Everleigh."	East Barnet	Miss Agnes A. Nutting.	"Everleigh," Church Hill Road East Barnet.	-	-	Miss Agnes A. Nutting.
2	1	Church Hill Road Boys' Farm Home Industrial School.	Ditto	Trustees (Boys' Farm Home) E. S. H. Reeves Correspondent.	386 Salisbury House London Wall E.C.	-	-	Trustees Boys' Farm Home.
3	3	Church Hill Road "The Grange."	Ditto	Arthur Mark Marshall.	"The Grange" Church Hill Road New Barnet.	-	-	Arthur Mark Marshall.
4	3	Church Hill Road "Prince of Wales" public-house.	Ditto	H. C. Watkins (Mortgagee). Messrs. Savill Brothers Limited.	Anchor Brewery Mile End Road E.	Alfred George Chappell.	"Prince of Wales" public-house Church Hill Road New Barnet.	Alfred George Chappell.
4	3	Church Hill Road "Prince of Wales" public-house lock-up shop.	Ditto	Ditto	Ditto	Ditto	Ditto	Sydney Alfred Atkins 5 Hadley Terrace New Barnet.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. liii.]
Provisional Orders Confirmation (No. 4) Act, 1926.

5	5	East Barnet Road "Bedford House."	Ditto	T. H. Philpots	10 Montpelier Terrace Ilfracombe.	-	-	-	-	-	Vacant.
6	5	East Barnet Road "Montague House."	Ditto	Edwin Pascoe	"Montague House" East Barnet Road New Barnet.	-	-	-	-	-	Edwin Pascoe.
7	5	1 Henry Road	Ditto	Westbrook Beach	1 Henry Road New Barnet.	-	-	-	-	-	Westbrook Beach.
8	6	Lyonsdown Road "Willenhall Lodge."	Barnet Vale and East Barnet Parishes.	George Kerr	Willenhall Lodge Great North Road New Barnet.	-	-	-	-	-	George Kerr.
9	6	Lyonsdown Road entrance to "Amalfi" Willenhall Avenue.	East Barnet	Walter Moore	"Amalfi" Willenhall Avenue New Barnet.	-	-	-	-	-	Walter Moore.
10	6	Lyonsdown Road North East Side.	Ditto	Frederick Reginald Hasluck (Receiver) H. M. Bourne (Receiver). Ditto	Gloucester House Gloucester Road New Barnet "The Croft" Totteridge Herts. Ditto	-	-	-	-	-	Vacant land.
11	6	Lyonsdown Road South West Side.	Ditto	Ditto		-	-	-	-	-	Mrs. Emma Twentyman.
12	8	Northumberland Road.	Ditto	Westminster Bank Limited.	41 Lothbury E.C.2	-	-	-	-	-	Vacant land.

The above-mentioned lands are more particularly delineated on a plan (being a copy of the deposited plan) in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the East Barnet Valley Order 1926" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited in the offices of the Council within fourteen days from the date of this Order.

A.D. 1926.
*East Barnet
Valley Order.*

[Ch. liii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1926.

A.D. 1926.

—
*East Barnet
Valley Order.*

Given under the Official Seal of the Minister of Health this
Thirtieth day of March One thousand nine hundred and
twenty-six.

(L.S.)

E. TUDOR OWEN
Assistant Secretary Ministry of Health.

BOROUGH OF KEIGHLEY.

*Keighley
Order*

*Provisional Order to enable the Keighley Corporation to
put in force the Compulsory Clauses of the Lands
Clauses Acts.*

WHEREAS the Mayor Aldermen and Burgesses of the Borough
of Keighley (hereinafter referred to as "the Corporation")
acting by the Council as the local authority for that Borough
for the purposes of the Public Health Act 1875 require to
purchase and take the lands described in the Schedule hereto
for the purposes of widening opening enlarging or otherwise
improving the street known as Lawkholve Lane in the said
Borough :

Now therefore the Minister of Health in pursuance of the
powers given to him by Section 176 of the Public Health Act
1875 and by any other Statutes in that behalf hereby orders that
from and after the date of the Act of Parliament confirming
this Order the following provisions shall have effect that is to
say :—

Compulsory
powers of
purchase.

1. The Corporation shall be empowered for the purposes
aforesaid to put in force with reference to the lands described
in the Schedule hereto (subject to the continuance of existing
public rights of highway if any) the powers of the Lands Clauses
Acts as modified by the Acquisition of Land (Assessment of
Compensation) Act 1919 with respect to the purchase and taking
of lands otherwise than by agreement or any of them.

Short title.

2. This Order may be cited as the Keighley Order 1926.

The SCHEDULE above referred to.

A.D. 1926.

*Keighley
Order.*

Parish of KEIGHLEY Borough of KEIGHLEY County of the
 WEST RIDING OF YORKSHIRE.

No. on Plan.	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
1	Shop - -	William Bruce Johnston. The Keighley and Craven Permanent Benefit Building Society.	William Henry Spencer. Edward Spencer	William Henry Spencer. Edward Spencer.
2	Ditto	Ditto	- - - -	William Bruce Johnston.
3	Yard and con- veniences.	Ditto	William Henry Spencer. Edward Spencer.	William Henry Spencer. Edward Spencer William Bruce Johnston.

The above-mentioned lands are more particularly delineated and coloured green on a plan (being a copy of the deposited plan) in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Keighley Order 1926" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited by the Town Clerk of Keighley in his office within fourteen days from the date of this Order.

Given under the Official Seal of the Minister of Health this
 Thirtieth day of March One thousand nine hundred
 and twenty-six.

(L.S.)

E. TUDOR OWEN
 Assistant Secretary Ministry of Health.

A.D. 1926.

URBAN DISTRICT OF KESWICK.

*Keswick
Order.*

*Provisional Order for amending the Keswick Urban
District Council (Water) Act 1907.*

WHEREAS the Urban District Council of Keswick (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Keswick and the unrepealed provisions of the Keswick Urban District Council (Water) Act 1907 (hereinafter referred to as "the Local Act") are in force in the District;

And whereas the Council are authorised by the Local Act to supply water within the Urban District of Keswick and certain other areas defined by Section 21 of that Act (which limits are hereinafter referred to as "the water limits of the Council");

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Act in manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be amended so that the following provisions shall have effect that is to say:—

Application
of Section 54
of Public
Health Act
1875 to
water under-
taking.

1. For the purposes of the supply of water by the Council under the Local Act the Council shall have the powers of a local authority under Section 54 of the Public Health Act 1875 in respect of the carrying of water mains within or without their district and in exercising the powers of that Section any area within the water limits of the Council shall be deemed to be included in their district:

Provided that in the exercise of the said powers the Council shall be subject to the provisions of Sections 308 327 328 329 and 332 of the Public Health Act 1875.

For pro-
tection of
London
Midland and
Scottish
Railway
Company.

2. The following provisions for the protection of the London Midland and Scottish Railway Company (hereinafter referred to as "the railway company") shall unless otherwise agreed between the Council and the railway company be in force and have effect:—

- (1) The Council shall not exercise the powers conferred on them by Article 1 of this Order under any lands or property belonging to the railway company without the consent of such company Provided that such

consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Health :

A.D. 1926.

—
*Keswick
Order.*

- (2) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works of the Council upon across over under or in any way affecting the railways lands or property belonging to the railway company or used or occupied by them for the purposes of their undertaking or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence if the same be given and to the reasonable satisfaction of the principal engineer of the railway company and except in cases of emergency according to plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Council Provided that if the said engineer shall not express his disapproval of such plans within twenty-one days from the submission thereof he shall be deemed to have approved thereof :
- (3) The Council shall restore and make good the roads over any bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council and all the works matters and things aforesaid shall be constructed, executed and done so as not to cause any injury to the railways bridges level crossings approaches viaducts stations works lands or property of the railway company or interruption to the passage or conduct of traffic over such railways or at any station thereon :
- (4) If any such injury or interruption as aforesaid shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Council shall make compensation in respect thereof to the railway company :
- (5) Any dispute or difference which may arise between the railway company and the Council with reference to the provisions of this Article or in any way arising thereout or as to any works to be carried out in pursuance thereof shall failing agreement and subject to the provisions of clause 1 of this Article be settled by arbitration by an engineer to be appointed on the application of either

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Provisional Orders Confirmation (No. 4) Act, 1926.

A.D. 1926.

*Keswick
Order.*

For protec-
tion of
General E.
W. Sped-
ding.

party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such arbitration.

3. For the protection of Edward Wilfred Spedding his heirs successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the Windebrow Estate Applethwaite Farm and all other properties belonging to the said E. W. Spedding in the Parish of Under Skiddaw in the Rural District of Cockermouth (who and which properties are in this Article included in the expression "the owner" and "estate" respectively) the following provisions shall notwithstanding anything in this Order or in the Public Health Act 1875 and unless otherwise agreed in writing between the Council and the owner have effect (that is to say):—

- (1) The Council shall not exercise the powers conferred upon them by this Order under any part of the estate without the consent of the owner provided that such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Health:
- (2) In laying down or executing or in effecting the repairs and renewals of any water-main of the Council upon across over under or in any way affecting any part of the estate (hereinafter referred to as "the authorised works") the same shall be done under the superintendence if the same be given and to the reasonable satisfaction of the owner and in such manner as will cause the least practicable disturbance to the amenities surface and drainage of the estate and except in cases of emergency according to plans and sections to be submitted to and in such manner as shall be previously reasonably approved by the owner and in all things by and at the expense of the Council:

Provided that if the owner shall not express his disapproval of such plans within twenty-one days from the submission thereof he shall be deemed to have approved thereof:

- (3) Except for the purpose of crossing a stream or water-course no water-main laid by the Council under the powers of this Order through any part of the estate shall be laid above ground nor shall the Council attach any water-main to the bridges of the owner across the River Greta nor for the purpose of cleansing examining or repairing any water-main discharge water therefrom into any stream or watercourse on the estate:
- (4) The Council shall not in the exercise of the powers of this Order cut down or interfere with any timber tree

or shrub on the estate without the consent of the owner which shall not be unreasonably withheld nor erect thereon any fence except such temporary fencing as is hereinafter provided :

A.D. 1926.

—
Keswick
Order.

- (5) The Council shall in executing the authorised works temporarily fence (but not with barbed wire) all excavations from time to time made on the estate or in some other effectual manner prevent cattle sheep and other animals from falling into such excavations and shall carefully remove from the surface all turf and vegetable soil on the line or site of the works and on the completion of such works they shall replace the turf and remove such fence and restore the surface of the ground as soon as may be to its former level and state and will make good and reinstate to the reasonable satisfaction of the owner all roads drains pipes cables or other works of the owner which may be interfered with by the Council in the exercise of the powers of this Order :
- (6) All surplus material arising in the execution of the authorised works shall if deposited on the estate be deposited at such place as the owner may from time to time reasonably direct :
- (7) The right of the owner and his lessees and tenants to use and cultivate any part of the estate in or under which any water-main shall be laid by the Council under the powers of this Order shall not be interfered with and it shall be lawful for the owner and his lessees and tenants to lay out construct and use along over or under any such main any roads drains pipes cables and other line works and to work any mines or minerals thereunder :
- (8) If any difference shall arise between the Council and the owner or any lessee or tenant of the owner under any of the provisions of this Article (other than subdivision (1) thereof) or respecting any act or thing to be done or right or liability thereunder such difference shall be referred to and determined by arbitration by a single arbitrator to be appointed in default of agreement by the President of the Surveyors Institution on the application of any of the parties in difference :
- (9) The provisions of this Article shall be in addition to and not in derogation from the provisions of the Public Health Act 1875 to the benefit of which the owner his lessees and tenants would otherwise be entitled.

4. For the protection of Adam Black his heirs successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the property known as the Underscar Estate (in this section referred to as "the estate") in the Parish of Under Skiddaw in the Rural District of Cockermouth (all of whom are in this section included in

For protec-
tion of Adam
Black
Esquire.

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*Keswick
Order.*

the expression "the owner") the following provisions shall notwithstanding anything in this Order or the Public Health Act 1875 and unless otherwise agreed in writing between the Council and the owner have effect (that is to say):—

- (1) Sub-divisions (1) (2) (5) (6) and (7) of the Article of this Order of which the marginal note is "For protection of General E. W. Spedding" shall apply and have effect for the protection of the owner in all respects as if the same were set out in this Article but with a reference to the Underscar Estate of the owner instead of to the estate therein referred to and in construing those sub-divisions as so applied the expression "the owner" therein used shall mean the owner as defined by this Article:
- (2) Except for the purpose of crossing a stream or watercourse no water-main laid by the Council under the powers of this Order through any part of the estate shall be laid above ground nor shall the Council for the purpose of cleansing examining or repairing any water-main discharge water therefrom into any stream or watercourse on the estate:
- (3) The Council shall not in the exercise of the powers of this Order cut down or interfere with any timber tree or shrub on the estate nor erect thereon any fence except such temporary fencing as the owner may require to be erected thereon during the execution of works under the powers of this Order:
- (4) If any difference shall arise between the Council and the owner or any lessee or tenant of the owner under this Article or respecting any act or thing to be done or right or liability thereunder such difference shall be referred to and determined by arbitration by a single arbitrator to be appointed in default of agreement by the President of the Surveyors Institution on the application of any of the parties in difference:
- (5) The provisions of this Article shall be in addition to and not in derogation from the provisions of the Public Health Act 1875 to the benefit of which the owner his lessees and tenants would otherwise be entitled.

Short title.

5. This Order may be cited as the Keswick Order 1926.

Given under the Official Seal of the Minister of Health
this Eighth day of April One thousand nine hundred
and twenty-six..

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

CITY OF LICHFIELD.

A.D. 1926.

*Provisional Order for partially repealing the Local Act
46 Geo. III. Cap. 42 relating to the City of Lichfield.*

*Lichfield
Order.*

WHEREAS the City of Lichfield (hereinafter referred to as "the City") is an urban district of which the Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas there are in force in the City the unrepealed provisions of a local Act passed in the 46th year of the reign of His late Majesty King George the Third and intituled "An Act for paving cleansing lighting watching and regulating the Streets Lanes and other Public Passages and Places within the City of Lichfield and the Suburbs thereof" (hereinafter referred to as "the Local Act");

And whereas Section LXVI. of the Local Act makes provision regarding the construction of the party walls and roofs of buildings erected within the City and the Corporation propose to make new byelaws under the Public Health Acts in regard to the matters;

And whereas the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order partially to repeal the Local Act in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders as follows :—

1. Section LXVI. of the Local Act is hereby repealed.

Partial repeal
of Local Act.

2. This Order may be cited as the Lichfield Order 1926 and shall come into operation on the date of the Act of Parliament confirming the same.

Short title.

Given under the Official Seal of the Minister of Health this
Eighth day of April One thousand nine hundred and
twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

A.D. 1926.

BOROUGH OF ROTHERHAM.

Rotherham Order. *Provisional Order to enable the Rotherham Corporation to put in force the Compulsory Clauses of the Lands Clauses Acts.*

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Rotherham (hereinafter referred to as "the Corporation") acting by the Council as the local authority for that Borough for the purposes of the Public Health Act 1875 require to purchase and take the lands described in the Schedule hereto for the purposes of widening opening enlarging or otherwise improving the streets known as Church Street College Street and Westgate in the said Borough (including the improvement and development of frontages to the said streets):

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

Compulsory powers of purchase.

1. The Corporation shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Short title.

2. This Order may be cited as the Rotherham Order 1926.

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The SCHEDULE above referred to.

A.D. 1926.

*Rotherham
Order.*

Parish of ROTHERHAM Borough of ROTHERHAM County of the
 WEST RIDING OF YORKSHIRE.

No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
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STREET WORKS No. 1.

COLLEGE STREET.

1	Forecourt and staircase.	Mappin's Mas- bro' Old Brewery Limited (George Ste- phen Hunt Secretary).	- . . .	Stephen Coates John Eadment Beaton Barclays Bank Limited Rotherham and District Per- fect Thrift Building So- ciety Amy Elizabeth Davies.
2	Yards passage motor garage outbuildings washhouse and storerooms.	Ditto	- . . .	Stephen Coates.
3	Public - house (White Hart Inn) motor garage billiard room and out- building. Sale shop -	Ditto	- . . .	Ditto.
4	Forecourt -	Ditto	- . . .	John Eadment Beaton. Stephen Coates.

STREET WORKS No. 2.

CHURCH STREET.

5	Footway steps sewers gas and water mains.	The Mayor Al- dermen and Burgesses of the County Borough of Rotherham.	- . . .	The Mayor Al- dermen and Burgesses of the County Borough of Rotherham.
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No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
6	Passage and out- buildings.	The Church- wardens of the Parish of Rotherham viz.—W. Elm- hirst H. Green R. R. Smith and H. C. H. Hem- mingway (Charles Harold Waters Secretary) Henry Spencer Follett John Bentley Foster Phipps Bentley Foster William Need- ham Longden Champion (Trustees of Robert John Bentley de- ceased).	- - - -	Thomas Myers Percy Joseph Sales Smith David Wilson John Smith Wil- son.
7	Public - house (Old Ring o' Bells).	Ditto	- - - -	Thomas Myers.

STREET WORKS NO. 3.

WESTGATE.

8	Shop and rooms over.	Alfred Bewley Leslie Bewley.	- - - -	Mary Ann Field- house Gertrude Field- house.
9	Shop and house	Ditto	- - - -	Florence Atkin- son Norman Kit- chen.
10	Shop - -	Ditto	- - - -	Leslie Bewley.
11	House - -	Ditto	- - - -	Elizabeth Allen.
12	Ditto - -	Ditto	- - - -	Arthur Thomas Hopkins.
13	Ditto - -	Ditto	- - - -	John Jarvis.
14	Ditto - -	Ditto	- - - -	George Barlow.
15	Ditto - -	Ditto	- - - -	Vacant.

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No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
16	Passage and room over yard garden steps walls and out- buildings.	Alfred Bewley Leslie Bewley.	- - - -	Elizabeth Allen Arthur Thos. Hopkins John Jarvis George Barlow Gertrude Field- house Mary Ann Field- house Florence Atkin- son Norman Kitchen Leslie Bewley.
17	Hotel restaurant and showroom.	The Feoffees of the Common Lands of Rotherham viz.— George Gum- mer George Clarke George Henry Lodge Peter Ban- croft Coward Daniel Mul- lins William Dyson Wil- liam Hastings Henry Ernest Knight Robert John Fawcett hereinafter referred to as the Feoffees of the Com- mon Lands of Rother- ham (Wm. Morris Gummer Sec- retary).	- - - -	The New Hal- lamshire Cafés and Institutes Limited (Henry Wells Smith Secretary) E. J. Brown and Company Limited (Frank Reginald Li- versidge Secre- tary).
18	Shop office pass- age and store- rooms.	Ditto	- - - -	Ditto.
19	Yard garden staircase and outbuildings.	Ditto	- - - -	Ditto.
20	Public - house passage yard and outbuild- ings (Station Hotel).	Truswell's Brewery Com- pany Limited (Alfred Lawn Phillips Sec- retary).	- - - -	Charles Morris.

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No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
21	Wash-house out- buildings and workshop over.	The Feoffees of the Common Lands of Rotherham (Wm. Morris Gummer Sec- retary).	- - - -	E. J. Brown and Company Limited (Frank Reginald Li- versidge Secre- tary) George Edwin Heap William Gibson.
22	House and shop	Ditto	- - - -	George Edwin Heap William Gibson.
23	Offices shop and workrooms.	Hay and Son Limited (P. H. Vicary Secretary).	- - - -	Watson Henry Harrison Anice Gaffney.
24	House and shop	John L. Hayes	J. W. Hallett -	Leonard Lovell George Williams.
25	Offices - -	Robert Marsh Betsey Marsh Executors of Robert Marsh.	- - - -	Robert Marsh.
26	Ditto - -	Peter Bancroft Coward.	- - - -	Peter Bancroft Coward Joseph Hardy Pickford Arthur Pickles Cyril Fawcett.
27	Passage and rooms over yards and out- buildings.	The Feoffees of the Common Lands of Rotherham (Wm. Morris Gummer Sec- retary).	- - - -	Peter Bancroft Coward Joseph Hardy Pickford Arthur Pickles Cyril Fawcett Robert Marsh Watson Henry Harrison Anice Gaffney George Edwin Heap William Gibson Leonard Lovell George William E. J. Brown and Company Limited (Frank Reginald Li- versidge Secre- tary).

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28	Hotel (Ship Hotel) passage yard staircase and outbuild- ings.	The Feoffees of the Common Lands of Rotherham (Wm. Morris Gummer Sec- retary).	- - - -	Moorhouse and C o m p a n y (Rotherham) Limited (Leo- nard Oxley Secretary) Kate Elizabeth Gaffney The Crown Hotel (Rother- ham) Company Limited (Daniel Mullins Secre- tary).	

STREET WORKS No. 4.

WESTGATE.

29	House and shop	Frederick Gill	- - - -	Rose Wilkin.
30	Passage and room over.	Ditto	- - - -	Harry Dillamore Madge Scott Alan Greaves Patrick Agnew Mary Matthew- man William Barnett William Marshall Cocker Michael Harrop Michael Mc Eanany Rose Wilkin Thomas Riley Wright Jowett David Lewis Haag William Douglas Charles Greaves.
31	House and shop	Ditto	- - - -	David Lewis Haag Wright Jowett.
32	Ditto	Ditto	- - - -	William Douglas.
33	Ditto	Ditto	- - - -	Walter Mont- gomery.

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No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
34	Passage - -	Frederick Gill	- - - -	Walter Mont- gomery John Thomas Quail Joseph Burton Arthur Lloyd Charles Hinch- liffe Daniel Edward Easton William Henry Moreman Joe Boardman George Smith. George Smith Joe Boardman The Mayor Al- dermen and Burgesses of the County Borough of Rotherham.
35	Roadway and gas mains.	The Feoffees of the Common Lands of Rotherham (Wm. Morris Gummer Sec- retary) The Mayor Al- dermen and Burgesses of the County Borough of Rotherham.	- - - -	George Smith.
36	House and shop	The Feoffees of the Common Lands of Rotherham (Wm. Morris Gummer Sec- retary).	- - - -	George Smith.
37	Public - house (Three Horse- shoes) yard wall and out- buildings.	John William Hardwick Matilda Jarvis.	John Smith's Tadcaster Brewery Limited (John Henry Frog- gatt Secre- tary).	William Henry Exley.
38	Passage and room over.	Ditto	Ditto	William Henry Exley Emily Elizabeth Crowther Mary Wraith John Wraith Ernest Bywater James Hum- phrey Ludlam Ernest Turner. Chas. Ernest Drury Alfred Smith.

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No. on Plan	Description of Property.	Owners or Reputed Owners.	Lessees or Reputed Lessees.	Occupiers.
39	Lodging-house -	John William Hardwick Matilda Jarvis.	John Smith's Tadcaster Brewery Limited (John Henry Frog- gatt Secre- tary).	William Henry Exley.
40	House shop yard wall and outbuildings.	Whitworth Son and Nephew Limited (Harry Win- dle Secre- tary).	- - - -	Gertrude Chor- ley.
41	Public - house (Baths Inn) yard and out- buildings.	Ditto	- - - -	Edward Stut- tard.
42	Passage yard and outbuild- ings.	Ditto	- - - -	Edward Stut- tard Gertrude Chor- ley.
43	Passage stair- case and rooms over.	Rotherham Steel Strip Company Limited (Charles James Needle Secretary).	Joseph France	Rotherham Steel Strip Com- pany Limited (Charles James Needle Secre- tary). Rother Boiler Company Limited (Charles James Needle Secretary) Joseph France.
44	Lock-up shop -	Ditto	Henry Powell Gough.	Henry Powell Gough.
45	House shop and area.	Charlotte Au- gusta Ryalls John Clayton (Trustees of Leonard At- kinson Ryalls deceased).	- - - -	Cornelius Stacey.
46	House and shop	Ditto	- - - -	Elizabeth Daughtrey.
47	Passage and room over.	Ditto	- - - -	Elizabeth Daughtrey Cornelius Stacey.
48	Lodging-house -	Ditto	- - - -	Elizabeth Daughtrey.
49	House and shop	Alfred Bewley	- - - -	Alfred Bewley.

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STREET WORKS No. 5.

WESTGATE.

50	House shop and passage.	David Lewis Haag.	- - - -	David Lewis Haag.
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STREET WORKS No. 6.

WESTGATE.

51	Forecourt steps and lodging- house.	Emily Clarke Henry Edward Dawes (Executors of Joseph Clarke).	- - - -	Tom Cocker.
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The above-mentioned lands are more particularly delineated and coloured pink on a plan (being a copy of the deposited plan) in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Rotherham Order 1926" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited by the Town Clerk of Rotherham in his office within fourteen days from the date of this Order.

Given under the Official Seal of the Minister of Health this
Thirtieth day of March One thousand nine hundred
and twenty-six.

(L.S.)

E. TUDOR OWEN
Assistant Secretary Ministry of Health.

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